

21STCV36288 21STCV36288

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Case Number: 21STCV36288 Hearing Date: July 16, 2026 Dept: 506

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

RICARDO ARREDONDO,

Plaintiff,

vs.

STANLEY HOWARD KIMMEL, et al.,

Defendants.

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CASE NO.: 21STCV36288

[TENTATIVE] ORDER DENYING DEFENDANT
STANLEY H. KIMMEL'S MOTION FOR JUDGMENT ON THE PLEADINGS

Dept. 506

8:30 a.m.

July 16, 2026

On October 1, 2021, Plaintiff Ricardo Arredondo ("Plaintiff")
filed this action against Defendants Stanley H. Kimmel, erroneously sued as
Stanley Howard Kimmel ("Kimmel"); Law Offices of Stanley H. Kimmel, Esq.
("Kimmel Firm") (collectively, "Defendants") arising from Defendants
representation of Plaintiff in a wrongful foreclosure matter.

On December 3,
2021, Defendants filed an answer to the complaint.

On May 26, 2026, Kimmel
filed a motion for judgment on the pleadings On July 2, 2026, Plaintiff filed
an Opposition. On July 9, 2026, Kimmel filed a Reply.

DISCUSSION

A defendant may
move for judgment on the pleadings on the grounds that: (1) the court has no
jurisdiction of the subject of the cause of action alleged in the complaint; or
(2) the complaint does not state facts sufficient to constitute a cause of
action against that defendant. (Code Civ. Proc. § 438, subd.
(c)(1)(B).)۞۞۞

The standard for

ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321-322 [citing *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216].) Any defects must either appear on the face of the pleading, or else be taken by judicial notice. (*Id.* at 321-22.) The parties' ability to prove their respective claims is of no concern. (*Cloud, supra*, 67 Cal.App.4th 995 at 999.)

Though the Court must accept the allegations of the complaint and answer as true (*Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515), it will not do so for "conclusions of law or fact, opinions, speculation, or allegations contrary to law or [judicially noticed] facts...." (*Stevenson Real Estate Servs., Inc. v. CB Richard Ellis Real Estate Servs., Inc.* (2006) 138 Cal.App.4th 1215, 1219–20.)

A.

Procedural Matters

In opposition,

Plaintiff argues that the present motion is untimely per Code of Civil Procedure Section 438, subdivision (e) and Kimmel failed to meet and confer. It is technically true that "[a] motion for judgment on the pleadings may be made at any time either prior to the trial or at the trial itself. [Citation.]" (*Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650.) However, if the motion is made after a pretrial conference order or less than 30 days before trial, the moving party must seek leave of court first. (See Code Civ. Proc., § 438, subd. (e) ["No motion may be made pursuant to this section if a pretrial conference order has been entered pursuant to Section 575, or within 30 days of the date the action is initially set for trial, whichever is later, unless the court otherwise permits."]) "It is evident that whether to grant such leave is a matter residing in the trial court's discretion to control litigation before it." (*Sutherland v. City of Fort Bragg* (2000) 86 Cal.App.4th 13, 25, fn. 4.)

Here, the Court

signed and entered the parties Stipulation and Order to Continue Trial and Related Dates ("Stipulation") on June 8, 2026. (See Stip. and Order, 6/8/26.)

The Stipulation expressly stated that the trial was continued to allow Kimmel's motion for judgment on the pleadings to be heard in a timely manner. (Id. at ¶4.) To the extent that Kimmel contends the Stipulation also indicates that the parties have met and conferred regarding the issue issued in the present motion, the Stipulation does not support such reading. The Stipulation states: "The parties have met and conferred and agreed to continue the current Trial date and related dates. California Rules of Court Rule 3.1332 provides, inter alia, that the Court may grant a continuance on a showing of good cause. Both counsels concur that the taking of the depositions will put the case in a stronger position to settle." (Id. at ¶5.) This seems to suggest the parties met and conferred regarding continuing the trial and related dates not the issues raised in the present motion.

Before filing a judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by videoconference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion for judgment on the pleadings..." (Code Civ. Proc., § 439, subd. (a).) Kimmel does not provide a declaration attesting to meeting and conferring with Plaintiff's counsel via telephone, videoconference, or in-person concerning the arguments now raised in the instant motion. Nevertheless, Plaintiff's opposition substantively addresses the arguments raised in the instant motion, thus the Court will exercise its discretion and rule on the merits below.

B.

Request for Judicial

Notice

Kimmel request for judicial notice of the following documents: (1) Substitution of Attorney – Civil filed on 8/27/20 in Los Angeles Superior Court Case No. 18STCV01146 ("Underlying Action") – Ex. 1; (2) Complaint filed on 10/1/21 in this present action – Ex. 2; and (3) Defendants' Answer to the Complaint in this present action – Ex. 3.

A court may judicially notice the '[r]ecords of ... any court of this state'. [Citation]." (Aixtron, Inc. v. Veeco Instruments Inc. (2020) 52 Cal.App.5th 360, 382,

disapproved of by *Vo v. Technology Credit Union* (2025) 108 Cal.App.5th 632 on other grounds.) “We may take judicial notice of the existence of judicial opinions and court documents, along with the truth of the results reached—in documents such as orders, statements of decision, and judgments—but cannot take judicial notice of the truth of hearsay statements in decisions or court files, including pleadings, affidavits, testimony, or statements of fact.” (Id.)

Accordingly,

Kimmel's request for judicial notice is GRANTED except as to the hearsay and facts in dispute.

C.

The Legal Malpractice

Cause of Action is not Barred by Code of Civil Procedure Section 340.6

Kimmel argues that

the legal malpractice claim is barred by the statute of limitations under Code of Civil Procedure Section 340.6 because Plaintiff's substitution of attorney form was signed by Plaintiff on August 19, 2020, thus Plaintiff knew or discovered his injury before August 20, 2020. (Mot. at 3:21-24.) Pursuant to Code of Civil Procedure Section 340.6, subdivision (a): “An action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first.” (Code Civ. Proc., § 340.6, subd. (a).) However, the legal malpractice limitations period is tolled if: “[¶](1) The plaintiff has not sustained actual injury.

[¶](2) The attorney continues to represent the plaintiff regarding the specific subject matter in which the alleged wrongful act or omission occurred. [¶](3)

The attorney willfully conceals the facts constituting the wrongful act or omission when those facts are known to the attorney, except that this subdivision shall toll only the four-year limitation. [¶](4) The plaintiff is

under a legal or physical disability that restricts the plaintiff's ability to commence legal action. [¶](5) A dispute between the lawyer and client concerning fees, costs, or both is pending resolution under Article 13

(commencing with Section 6200) of Chapter 4 of Division 3 of the Business and Professions Code. As used in this paragraph, ‘pending’ means from the date a request for arbitration is filed until 30 days after receipt of notice of the

award of the arbitrators, or receipt of notice that the arbitration is otherwise terminated, whichever occurs first.” (Id. [emphasis added].)

“[T]he California courts have consistently held that a demurrer which raises the defense that a statute of limitation bars the action cannot be sustained unless the facts alleged in the complaint show that the action is barred. If all that appears from the facts alleged is that the action might be barred, the defense cannot be raised by demurrer.” (Anderson v. McNally (1957) 150 Cal.App.2d 778, 783; see also Pike v. Zadig (1915) 171 Cal. 273, 277, disapproved of on other grounds by Decesare v. Lembert (1983) 144 Cal.App.3d 20, stating [“a demurrer on the ground of the bar of the statute of limitations does not lie, where the complaint merely shows that the action may have been barred. It must appear affirmatively that, upon the facts stated, the right of action is necessarily barred.”].)

Plaintiff alleges, inter alia, that on or about September 8, 2018, Plaintiff retained Defendant to represent him in a wrongful foreclosure matter. (Compl., ¶17.) On or about October 17, 2018, Defendants on behalf of Plaintiff filed the Underlying Action against Poya Ghasri (“Ghasri”). (Id., ¶18.) Ghasri filed two demurrers to Plaintiff’s complaint and first amended complaint (“FAC”) in the Underlying Action, which were sustained. (Id., ¶¶19-20.) Defendants owed Plaintiff a duty to use such skill, prudence, and diligence as other members of his profession; breached that duty by failing to adequately plead facts sufficient to support Plaintiff’s claims for wrongful foreclosure despite being in possession of the facts to support Plaintiff’s claims; but for Defendants’ negligence, Plaintiff’s case would not have been dismissed; Plaintiff suffered the loss of his real property as a result of the case being dismissed. (Id., ¶¶26-31.) “As a result of DEFENDANTS’ inability to adequately and competently allege causes of action to protect Plaintiff’s claims, and DEFENDANTS’ failure to adequately oppose Ghasri’s demurrers, Plaintiff filed a substitute of attorney after retaining new counsel, Anderson & Associates.” (Id., ¶21.) On September 29, 2020, Plaintiff newly retained counsel filed a third amended verified complaint (“TAC”) in an effort to cure and save Plaintiff’s claims, to which Ghasri filed another demurrer that was sustained without leave to amend because of the Court’s previously granted demurrer ruling. (Id., ¶22.)

Here, the substitution of attorney form, which is incorporated by reference was signed by

Plaintiff on August 19, 2020 and by Kimmel on August 20, 2020. (Compl., ¶21; RJN, Ex. 1.) As such, Kimmel contends that Plaintiff had until August 18, 2021 to file his claim for legal malpractice, which would be one-year after August 19, 2020. By contrast, Plaintiff contends that his claim was tolled until he actually sustained injury, which did not occur until March 10, 2021, when the Court in the Underlying Action sustained Ghasri's demurrer to the TAC. (Opp. at 5:4-12, 7:3-6.)

"Under section

340.6, the one-year limitations period commences when the plaintiff actually or constructively discovers the facts of the wrongful act or omission, but the period is tolled until the plaintiff sustains actual injury. That is to say, the statute of limitations will not run during the time the plaintiff cannot bring a cause of action for damages from professional negligence." (Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison (1998) 18 Cal.4th 739, 751.) "The test for actual injury under section 340.6, therefore, is whether the plaintiff has sustained any damages compensable in an action, other than one for actual fraud, against an attorney for a wrongful act or omission arising in the performance of professional services." (Id.) "Actual injury refers only to the legally cognizable damage necessary to assert the cause of action. There is no requirement that an adjudication or settlement must first confirm a causal nexus between the attorney's error and the asserted injury. The determination of actual injury requires only a factual analysis of the claimed error and its consequences. The inquiry necessarily is more qualitative than quantitative because the fact of damage, rather than the amount, is the critical factor." (Id. at p. 752.) Essentially, at issue is whether actual injury necessary to commence an action for legal malpractice against Kimmel occurred upon dismissal of the Underlying Action or when Plaintiff signed the substitution of attorney.

The Court finds

that the actual injury necessary to commence the present action against Kimmel occurred upon dismissal of the Underlying Action.

While the

complaint alleges Kimmel's "claimed error" was failing to properly plead sufficient facts to support Plaintiff's wrongful foreclosure claims in the Underlying Action, Plaintiff had not actually suffered the consequences of Kimmel's claimed error until the Court's ruling on Ghasri's demurrer to the TAC in the Underlying Action.

This instant

matter is distinguishable from *Jordache*, wherein the client had suffered actual injury when the law firm failed to tender a defense of the action to the client's insurer, which led to the client incurring defense costs and decreasing their settlement value. (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 752–753.) Specifically, the client in *Jordache* lost its right to have its insurer defend against the action on their behalf due to its attorney's negligence, i.e., failure to tender the defense to the client's insurer. "[W]hen malpractice results in the loss of a right, remedy, or interest, or in the imposition of a liability, there has been actual injury regardless of whether future events may affect the permanency of the injury or the amount of monetary damages eventually incurred." (*Truong v. Glasser* (2009) 181 Cal.App.4th 102, 112.) As shown above, Plaintiff did not lose his interest in his real property until after the Court in the Underlying Action dismissed his case via the ruling on Ghasri's demurrer to the TAC on March 10, 2021. (Compl., ¶22; Opp. at 5:4-12, 7:3-6.) Thus, Plaintiff had until March 10, 2022 to file an action against Kimmel for legal malpractice.

Therefore, the complaint

is not barred by the statute of limitations set forth in Code of Civil Procedure Section 340.6.

CONCLUSION

Accordingly, the motion

for judgment on the pleadings is DENIED.

Defendant Stanley

H. Kimmel to give notice.

Parties who intend

to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 16th day of July 2026

Hon. Thomas D.
Long

Judge of the Superior
Court